

Tentative Rulings for June 23, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400432	DUNAYEVICH VS ATLAS COPCO TOOLS & ASSEMBLY SYSTEMS LLC	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The motion of Vulcan Company, Inc., for summary judgment is granted. Vulcan's evidentiary objections are sustained.

Analysis:

Vulcan's two evidentiary objections are sustained on the grounds stated by Vulcan. Objection #1 is sustained on the additional ground that it lacks any credibility. The cutter in exhibit 5 of the plaintiff's deposition obviously bears no resemblance to the cutter in exhibit 6.

UMF#15 (that the district's computers used the same item description for 1 1/8 inch asphalt cutter shanks regardless of the manufacturer) is supported by the evidence cited by Vulcan and is not contradicted by the evidence cited by the plaintiff. Therefore, the plaintiff's citations to evidence that an asphalt cutter of the same description was issued to him, or that he recognized cutters of that description, do not create a disputed issue of material fact that the cutter used at the time of the accident was manufactured by Vulcan.

Similarly, the design features of Vulcan cutters are undisputed. (UMF 10.) The evidence cited by Vulcan supports its assertion that the cutters involved in the accident differ in design from those manufactured by Vulcan. (UMF 11.) Although the plaintiff disputes that assertion, the evidence on which it relies does not create a disputed issue of material fact, because all the various documents use the ambiguous item description that fails to distinguish between those cutters manufactured by Cutter and those from some different manufacturer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL FURTHER RESPONSE AGAINST DEFENDANTS BOMOTTI, WILSON WATKINS, MUELLER, UHRICH, HEDYATI, STARK & JESKE

Tentative Ruling: The hearing on the motion to compel is continued to 8-6-26 at 8:30 A.M. in this department. No later than 7-15-26, the parties shall meet and confer either in person, by telephone, or by videoconference in an effort to resolve their discovery

disputes. (Code Civ. Proc., § 2016.040, subd. (a).) If the parties are entirely successful, the plaintiff shall promptly file and serve a notice that the motion is withdrawn. If the parties have not entirely resolved the disputes, then no later than 7-27-26, (1) the parties shall file a joint statement listing the issues that were not resolved and (2) the moving party shall file a declaration describing the parties' efforts to meet and confer.

Analysis:

The moving party's effort to meet and confer was limited to a letter. Unless followed up by a personal meeting, telephone conversation, or video conference, a letter alone does not comply with section 2016.040 and does not constitute a reasonable and good-faith effort.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404781	COLOCHO VS CITY OF EASTVALE	MOTION FOR RELIEF FROM ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AND TO PERMIT WITHDRAWAL OF DEEMED ADMISSIONS

Tentative Ruling: The plaintiff's motion for relief from deemed admissions is granted on the condition that, no later than July 23, 2026, plaintiff's counsel pay to the City, through the City's attorney of record, the sum of \$8,295, consisting of (a) \$735, the sanctions previously ordered of \$735 and (b) \$7,560, the costs incurred in reliance upon the order deeming admissions.

Analysis:

The multiple failures of plaintiff's counsel –in failing to serve a verification in a timely fashion, in failing to oppose the motion to deem admissions, and in failing to promptly move for relief from the deemed admissions -- are inexcusable. However, unlike *Hearn v. Howard* (2009) 2009 177 Cal.App.4th 1193, none of those failures are due to the negligence or poor judgment of the plaintiff herself. Moreover, the prejudice to the City can be cured by the reimbursement of the expenses incurred by the City in reliance on the deemed admissions. Under those circumstances, the policy favoring trial on the merits prevails.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2406588	YOUSSEF VS JAGUAR LAND ROVER NORTH AMERICA, LLC,	MOTION TO COMPEL

Tentative Ruling: The motion is off calendar.

Analysis:

On 5-4-26, the Court ordered the parties to meet and confer in an effort to either “resolve their discovery disputes [or] clarify and narrow them from the 107 requests at issue. If the parties cannot agree: (1) the parties are ordered to submit a joint separate statement of outstanding issues only referencing what requests specifically remain at issue and (2) moving party is ordered to submit a declaration addressing the parties’ efforts to meet and confer; these are required to be submitted at least ten (10) calendar days prior to the next hearing date.”

No declaration has been filed. Therefore, the Court must assume that the discovery disputes raised in the motion have been entirely resolved and that no hearing on the motion is necessary.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506703	CANYON CROSSING LLC VS FITNESS INTERNATIONAL, LLC	VERIFIED APPLICATION OF JOSHUA M. LINK TO APPEAR AS COUNSEL PRO HAC VICE FOR DEFENDANT FITNESS INTERNATIONAL, LLC

Tentative Ruling: The application of Link is granted. The proposed order is signed.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600083	DOE VS DOES 1-50	MOTION FOR LEAVE TO CONDUCT LIMITED EARLY DISCOVERY TO IDENTIFY DOE DEFENDANTS

Tentative Ruling: The motion for leave to conduct discovery before any defendants have been served is granted. The proposed order is signed.